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Case Number: 24NNCV03705 Hearing Date: August 27, 2026 Dept: P

[TENTATIVE] ORDER DENYING

PLAINTIFF'S MOTION FOR ISSUE AND EVIDENTIARY SANCTIONS AGAINST MASCHOLE
PROPERTY MANAGEMENT, INC. FOR DISCOVERY ABUSES AND SPOILATION OF EVIDENCE

I. INTRODUCTION

Plaintiffs Qing Ye Li, individually
and as successor in interest to the Estate of Xingya Zhang, and Hui Hung Zhang
(collectively, "Plaintiffs") filed this action on August 20, 2024,
alleging causes of action for negligent security, negligence, battery, and
elder abuse against Defendants Jade Court San Gabriel, LP ("Jade "),
Starboard Seaview Manager, Inc. ("Starboard"), Jerry Uy
("Uy"), Mia Constance Williams, Jaumaul Rashaud Jackson, and Does 1
through 100. The action arises from the December 26, 2022, death of Xingya
Zhang.

On July 29, 2026, Plaintiffs filed
the instant motion for issue and evidentiary sanctions against Defendant
Mashcole Property Management, Inc. ("Mashcole") based on alleged discovery
abuses and spoliation of evidence. Mashcole filed an opposition on August 14,
2026, and Plaintiffs filed a reply on August 20, 2026.

Evidentiary objections

· Maschole's
objections to the Farrugia declaration are SUSTAINED.

II. LEGAL STANDARD

Under CCP § 2023.030(d), the Court may impose terminating sanctions by “an order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process” and “an order rendering a judgment by default against that party.” The Court must consider the alternatives available, which include intermediate sanctions available under CCP § 2023.030, namely increased monetary sanctions, issue sanctions, or evidence sanctions. “The court may impose an issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. The court may also impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses.” CCP § 2023.030(b). “The court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence.” CCP § 2023.030(c).

“A party moving for discovery sanctions based on the spoliation of evidence must make an initial prima facie showing that the responding party in fact destroyed evidence that had a substantial probability of damaging the moving party’s ability to establish an essential element of his claim or defense.” *Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1227. Once such a showing is made, the burden shifts to the party seeking to avoid sanctions to disprove prejudice. *Id.* “Spoliation is the destruction or significant alteration of evidence, or the failure to preserve property for another’s use as evidence in pending or reasonably foreseeable litigation. Destruction of evidence relevant to proof of an issue at trial can support an inference that the evidence would have been unfavorable to the party responsible for its destruction.” *Reeves v. MV Transp., Inc.* (2010) 186 Cal.App.4th 666, 681.

III. ANALYSIS

Plaintiffs move for issue and evidentiary sanctions against Mashcole pursuant to Code of Civil Procedure sections 2023.010 and 2023.030 based on alleged discovery abuses and spoliation of evidence. Plaintiffs principally argue that Mashcole failed to preserve and produce relevant electronically stored information after its duty to preserve arose, despite its officers and counsel having actual knowledge of the litigation and despite Mashcole’s own document retention and litigation hold

policies. (Motion, pp. 2-9; Reply, pp. 2-4.)

Specifically, Plaintiffs contend

that communications concerning Mashcole's knowledge of Jaumaul Jackson, including his alleged threats, prior police contacts, eviction and continued presence at the property in an RV, are missing. Plaintiffs assert Maschole has offered three inconsistent explanations concerning its retention practices – its verified discovery responses state that emails are automatically deleted after one year; its IT contractor, Zack Ghaly, testified that emails are retained for only two to three months and that he was never instructed to preserve ESI in this action; and Mashcole's written Standards of Performance provide that incident and patrol reports are retained for the "life of the community" and that documents are stored "indefinitely in Yardi Voyager." (Motion, pp. 5, 9.) Plaintiffs reiterate in reply that Mashcole failed to institute a litigation hold, that a key custodian's email account was shut off after Mashcole knew of the lawsuit, and that Mashcole has provided "three irreconcilable retention stories." (Reply, p. 2.)

In opposition, Mashcole argues that

Plaintiffs have not established a basis for the requested issue or evidentiary sanctions. Mashcole first contends that the motion is procedurally defective because Plaintiffs failed to file a separate statement as required by California Rules of Court, rule 3.1345(a)(7) for motions seeking issue or evidentiary sanctions. (Opposition., p. 9.)

Further, Maschole argues that

Plaintiffs have not established willful spoliation or discovery abuse warranting nonmonetary sanctions. Maschole contends that Plaintiffs have not identified any discovery order that Maschole violated and, at most, have presented evidence of negligent loss rather than intentional or willful conduct. Maschole also argues that the safe-harbor provision of CCP section 2023.030 (f)(1) precludes sanctions for ESI lost through the routine, good faith operation of an electronic information system. (Id. at pp. 18-19,)

Mashcole also argues that

Plaintiffs have not shown the allegedly destroyed evidence had a substantial probability of impairing their ability to establish an essential element of their claims, and that the requested sanctions would improperly place Plaintiffs in a better position than if the discovery had been produced. Finally, Maschole argues that any CACI No. 204 adverse-inference instruction should be addressed

at trial. (Id. at pp. 12-18.)

The Court makes the following findings.

First, as to the procedural defect, the Court exercises its discretion to reach the merits despite Plaintiffs' failure to file a separate statement. The issues and discovery conduct at issue are sufficiently identified in the papers.

Next, the Court is not persuaded with Mashcole's proposition that issue or evidentiary sanctions necessarily require the violation of a prior discovery order. Plaintiffs allege spoliation of evidence that no longer exists, rather than merely a failure to comply with a discovery request. As Plaintiffs point out in reply, Code of Civil Procedure sections 2023.010 and 2023.030 authorize sanctions for misuse of the discovery process, including spoliation, without a prior order compelling production. (Reply, pp. 2-4.)

The Court finds Plaintiffs have raised legitimate concerns regarding Mashcole's preservation of relevant evidence. Mashcole was aware of the litigation and had written procedures requiring the preservation of documents relating to litigation. Nevertheless, Mashcole's IT contractor, Zack Ghaly, testified that no one instructed him to preserve electronically stored information in this matter and that Uy's computer and email account were not preserved. Plaintiffs also identify materially inconsistent evidence regarding Mashcole's retention practices, including a one-year retention period stated in verified discovery responses, a two-to-three-month period identified by Ghaly, and Mashcole's written policy providing for longer retention of certain records. (Motion, pp. 5, 9.) Plaintiffs further present evidence that Uy's email account was shut down in November 2024, after Mashcole and its counsel were aware of this litigation. (Reply, pp. 4-5.) On this record, the Court cannot conclude that the loss of the ESI falls within the safe harbor for the routine, good-faith operation of an electronic information system.

However, the Court finds that the issue and evidentiary sanctions requested by Plaintiffs go too far. Plaintiffs ask the Court to establish that Mashcole owed and breached a duty to protect Plaintiffs from the foreseeable conduct of Jackson and Williams. Alternatively,

Plaintiffs seek to establish that Mashcole's officers, directors, and/or managing agents had advance knowledge of Jackson's and Williams's dangerousness and prior threatening and criminal conduct, and to preclude Mashcole from presenting evidence to the contrary. (Motion, pp. 18-19.) Although the missing communications may have contained evidence relevant to these issues, the present record does not establish that the missing evidence would have conclusively established these facts. The requested sanctions would establish significant liability-related facts based on the absence of evidence whose actual contents are unknown. Imposing the requested sanctions would therefore place Plaintiffs in a materially better position than they would have occupied had the evidence simply been preserved and produced.

Finally, the Court declines to order Plaintiffs' proposed modified CACI No. 204 instruction at this time. The proposed instruction goes beyond permitting an adverse inference by affirmatively stating what the missing communications would have established. Specifically, Plaintiffs ask the Court to instruct the jury that the missing communications "indicate the full extent" of Mashcole's knowledge regarding Jackson's criminality and violent conduct, even though the contents of those communications are unknown. The Court therefore reserves the issue of whether a standard or appropriately modified CACI No. 204 instruction is warranted based on the evidence presented at trial.

Thus, Plaintiffs' motion for issue and evidentiary sanctions is DENIED without prejudice to Plaintiffs seeking an appropriate adverse-inference instruction at trial.

IV. ORDER

The Court DENIES Plaintiffs motion for issue and evidentiary sanctions without prejudice to Plaintiffs seeking an appropriate adverse-inference instruction at trial.

Plaintiffs are to give notice.

Dated: August 27, 2026

JARED D. MOSES
JUDGE OF THE SUPERIOR COURT